

25STCP03827 25STCP03827

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Case Number: 25STCP03827 Hearing Date: September 1, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JOSE

GASCA,

Petitioner(s),

vs.

CITY OF LOS ANGELES, et al.,

Respondent(s).

Case No.:

25STCP03827

Hearing Date:

September 1, 2026

[TENTATIVE] RULING ON PETITION

FOR WRIT OF MANDATE

Petitioner Jose Gasca ("Petitioner") petitions for a writ of administrative mandate against respondents City of Los Angeles ("City"), Jim McDonnell ("McDonnell") and Kenneth Mejia ("Mejia") (collectively, "Respondent"), directing them to set aside the decision to impose a five-day suspension of his employment with the Los Angeles Police Department ("Department").

The petition for writ of mandate is denied.

I.

Factual Background

On June 26, 2023, Jason Nichols ("Nichols") was arrested and booked at the Department's Southeast Station ("Station"). During this process, an Officer Carpenter ("Carpenter") removed an earring from Nichols's ear and placed it in a property bag. (AR 7-8, 337-38.)

On July 21, 2023, Nichols returned to the Station and informed Petitioner he could not find the earring. (AR 139-43.) Petitioner provided Nichols with his information for any further contact. (AR 145-46.) Petitioner gave Nichols his information so Nichols could contact him with any updates (AR 145-46) and then directed an Officer Aguirre ("Aguirre") to prepare a Lost Property Report ("Report") (AR 175-76; see AR 318). Petitioner also documented the conversation in his Sergeant's Log. (AR 150-51; see AR 321.)

On December 8, 2023, Nichols returned to the Station and discussed the matter with a Sergeant White, who initiated a complaint against Petitioner for failure to take a complaint from Nichols regarding the earring. (AR 81, 89.)

On October 21, 2024, Petitioner was served with a Notice of Proposed Discipline. (AR 92.) On November 26, 2024, Petitioner was served with a Complaint and Relief from Duty seeking a ten-day suspension. (AR 351.)

Petitioner requested a Board of Rights ("Board") hearing. The Board heard his case and, on July 15, 2025, found Petitioner guilty of the only count for failure to take appropriate action after becoming aware of alleged

misconduct. (AR 354-62.) The Board imposed a five-day suspension. (AR 363-65.) McDonnell executed an order for five-day suspension, in line with the Board's decision, on July 24, 2025. (AR 352.) The order was served on Petitioner on July 28, 2025. (AR 352.)

II.

Procedural History

On October 2, 2025, Petitioner filed his verified petition. Proofs of service filed October 8, 2025 show Petitioner served the City, McDonnell, and Mejia each by substituted service on October 6, 2025.

On June 15, 2026, Petitioner filed his opening brief. On July 14, 2026, Respondent filed its opposition. On July 27, 2026, Petitioner filed his reply.

On July 22, 2026, the court continued the hearing on the petition from August 13, 2026 to September 1, 2026.

On July 31, 2026, Petitioner filed notices of lodging for the trial notebook and administrative record.

III.

Standard of Review

Code of Civil Procedure ("CCP") section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15 ["*Topanga*"].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 ["*Fukuda*"].) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 ["*Bixby*"]; see CCP § 1094.5(c).) The court uses its independent judgment on matters affecting a public employee's vested property interest in his employment. (*Barber v. Long Beach Civil Service Comm'n* (1996) 45 Cal.App.4th 652, 658.)

"In exercising its independent judgment, a trial court must

afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (Fukuda, supra, 20 Cal.4th at 817.)

Unless it can be demonstrated by petitioner that the agency’s actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency’s discretion or substitute their wisdom for that of the agency. (Bixby, supra, 4 Cal.3d at 150-151; Bank of America v. State Water Resources Control Board (1974) 42 Cal. App.3d 198, 208 [“Bank of America”].)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (Steele v. Los Angeles County Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion.” (Alford v. Pierno, (1972) 27 Cal.App.3d 682, 691.)

“The propriety of a penalty imposed by an administrative agency is a matter vested in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion.” (Williamson v. Board of Medical Quality Assurance (1990) 217 Cal.App.3d 1343, 1347.)

IV.

Analysis

Petitioner seeks an order setting aside Respondent’s decision to impose a five-day suspension of his employment with the Department.

Petitioner argues that

(1) Respondent violated the Peace Officer’s Bill of Rights Act (Gov. Code § 3300, et seq.) (“POBRA”) by serving the Complaint more than one year after discovering his alleged misconduct; (2) the weight of the evidence does not support the Board’s conclusion that Petitioner engaged in misconduct; and (3) Respondent abused its discretion by imposing a five-day suspension penalty.

The Weight of the Evidence Supports the Board's Timeliness Determination

Petitioner argues that the
administrative charges were untimely.

Government Code section 3304,
subdivision (d)(1), provides that no punitive action may be taken if the
investigation of the alleged misconduct is not completed within one year of its
discovery by a person authorized to initiate an investigation. (Gov. Code §
3304(d)(1).)

a.

Standard of Review

The parties disagree over whether
CCP section 1085 or CCP section 1094.5 applies. Petitioner argues that the
Court may directly determine whether Respondent violated Petitioner's rights
under POBRA, which would allow the Court to weigh the evidence itself and make
an independent determination. Respondent, by contrast, argues that the Board
has discretion to adjudicate the statute of limitations, and that the Court
must therefore review the Board's decision under the deferential standards set
forth in CCP section 1094.5.

Courts are split on the question.

In *Ochoa v. County of Kern*, (2018) 22 Cal.App.5th 235 ["Ochoa"],
the court stated the action based on the POBRA statute of limitations should
have been brought under CCP section 1094.5, rather than CCP section 1085. (Ochoa
at n. 5.) The court therefore construed the action as properly arising under
CCP section 1094.5 and resolved it under that standard. (Ibid.) By
contrast, in *Squire v. County of Los Angeles*, (2018) 22 Cal.App.5th 16 ("Squire"),
another action arguing the POBRA statute of limitations, the Court of Appeal applied
the standard under CCP section 1085. (Squire at 22.)

This Court is inclined to
conclude that CCP section 1085 applies. However, the distinction is ultimately
immaterial because both frameworks employ the same standard of review.
Traditionally, writ relief under CCP section 1085 is appropriate when a petitioner
demonstrates that a public agency has violated a mandatory, ministerial duty. (*Siskiyou
Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 36-37,

quoting *Carrancho v. California Air Resources Board* (2003) 111 Cal.App.4th 1255, 1267; *Brown v. Department of Motor Vehicles* (2026) 118 Cal.App.5th 206, 213.) However, writ relief under section 1085 is also available to remedy an abuse of discretion. (*CV Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 278-79.)

As *Squire*, supra, 22

Cal.App.5th 16, illustrates, disciplinary decisions by the Department—including application of the Government Code section 3304, subdivision (d)(1), statute of limitations—are matters of discretionary administrative adjudication. (*Squire* at 22; see also *Ochoa*, supra, 22 Cal.App.5th at n. 5.)

Accordingly, whether the petition is considered under CCP section 1085 (traditional mandamus) or CCP section 1094.5 (administrative mandamus), the Court reviews for abuse of discretion.

b.

Analysis

The parties agree on the relevant facts. On June 26, 2023, Nichols was arrested and booked, during which Carpenter removed an earring and placed it in a property bag. (AR 7-8, 337-38.) On July 21, 2023, Nichols returned to the Station and told Petitioner he could not find the earring that had been removed from his ear during booking. (AR 139-43.) Nichols acknowledged that his daughters may have taken the earring. (AR 143-44.) Petitioner gave Nichols his contact information (AR 145-46), directed Aguirre to prepare the Report (AR 175-76; see AR 318), and documented the conversation in his Sergeant's Log. (AR 150-51; see AR 321.) Supervisors reviewed and signed the Report and the Sergeant's Log. (AR 318.) Nearly five months later, on December 8, 2023, Nichols returned to the Station and discussed the matter with White. (AR 81.) White initiated a complaint. (AR 81, 89.) On October 21, 2024, Petitioner was served with a Notice of Proposed Discipline. (AR 92.)

The statute of limitations turns on the date an independent supervisor discovered the alleged misconduct. The analysis therefore requires determining whether the Report and Sergeant's Log provided notice of the underlying possible misconduct on July 21, 2023. If they did, then the Notice of Proposed Discipline, served October 21, 2024, was untimely under Government Code section 3304, subdivision (d)(1). If they did not, discovery occurred on December 8, 2023, when Nichols spoke with White, and the Notice was timely.

Two forms of misconduct are relevant. The first is the underlying possible misconduct by a Department officer. As previously described, Nichols's earring was last accounted for in the Department's possession, creating a reasonable possibility that a Department member mishandled the property, intentionally or otherwise, resulting in its loss. This possible misconduct is not the misconduct alleged against Petitioner; it is the misconduct that forms the basis for the allegation that Petitioner failed to report it.

The second form of misconduct is the conduct directly at issue. The Department alleges Petitioner knew or should have known of the underlying possible misconduct based on his interaction with Nichols on July 21, 2023, and therefore had a mandatory duty to initiate a complaint form. (AR 11 ["Sections 8.11 through 813.10 clearly mandate[] a supervisor upon learning of possible misconduct to initiate a complaint form."].)

The statute of limitations determination requires evaluating whether the Report and Sergeant's Log conveyed enough information to alert Petitioner's supervisors both to the underlying possible misconduct and to Petitioner's awareness of it. Notice could arise either from an explicit statement indicating Petitioner suspected possible misconduct, or from facts demonstrating that misconduct was reasonably possible. Absent such information, supervisors could not have discovered an alleged failure by Petitioner to report.

The Report and Sergeant's Log are part of the administrative record. (AR 318 [Report], 319–322 [Sergeant's Log].) Because the narratives are brief, the Court reproduces them in full.

In its form fields, the Report identifies Nichols and the Station, describes the property as "(1) left yellow earring" [sic] valued at "\$3,500," and includes administrative details such as the incident number, date, and Aguirre's identifying information. (AR 318.) The narrative portion states: "Victim lost yellow earring while at Southeast Station near booking area benches." (AR 318.)

The Sergeant's Log is four pages long and contains information on many unrelated matters, but pertinent to this

matter, it provides only:

"1900 Hours: Sta Call 145 W 108th St Inc #3846

I met a citizen who had a concern regarding his arrest from a few weeks ago. Citizen stated he was arrested for possession of a firearm and could not find some of his jewelry. Subjected [sic] stated most of his jewelry was given over to his daughter the night of the arrest but did not know where other items might be. Subject asked for a loss property report and one was filed for him. I gave the citizen by [sic] business card and there were no other questions." (AR 321.)

The Court's review of the statute of limitations issue is therefore narrow: whether the Board abused its discretion in concluding that these entries were insufficient to put Petitioner's supervisors on notice of the underlying possible misconduct. (See AR 355.)

The Court concludes that the weight of the evidence supports the Board's decision.

Neither the Sergeant's Log nor the Report include the critical details which would give the supervisors cause to believe misconduct possibly occurred. They do not specify that Petitioner was aware Carpenter had taken the earring from Nichols and placed it in a property bag. They do not specify that while Nichols stated that most of his jewelry was given over to his daughter (see AR 231 [Dept. Ex. 6] at timestamp 18:33:18), Nichols also stated the earring was taken separately and placed in a bag that was given directly back to him (see AR 321 [Dept. Ex. 6] at timestamp 18:34:10), and Nichols was unable to locate the earring within this bag when he returned home (see AR 321 [Dept. Ex. 6] at timestamp 18:34:30). The scenario described by the Report and Sergeant's Log is one of lost property that may have been misplaced at the Station but does not connect the loss in any way to any action or inaction by Department members.[1]

Given the absence of facts suggesting underlying possible misconduct, the supervisors who signed off on the Report and the Sergeant's Log had no basis to conclude misconduct may have occurred and therefore no basis to conclude Petitioner failed to report it. Consequently, the Department did not discover Petitioner's alleged misconduct until December

8, 2023, when Nichols again returned to the station and spoke with White. (AR 81, 89.) Accordingly, the weight of the evidence supports the Board's decision that the October 21, 2024 service of the Notice of Proposed Discipline was timely under Government Code section 3304, subdivision (d)(1).

2.

The Weight of the Evidence Supports the Board's Determination of Misconduct

Petitioner argues the evidence does not support the ALJ's finding that he failed to report possible misconduct. Specifically, Petitioner argues "he did not initiate a complaint regarding the lost earring because Nichols had said he wanted to speak to his daughters about it." (Pet. Op. Br. at 13.) Petitioner said the same at hearing. (AR 145-46.) He further testified, "I don't believe he was alleging misconduct, which is why I didn't take a complaint. There was no allegation to me." (AR 147.)

Under the independent judgment standard, "the trial court not only examines the administrative record for errors of law but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo." (Bixby, *supra*, 4 Cal.3d at 143.) The court must draw its own reasonable inferences from the evidence and make its own credibility determinations. (Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners (2003) 107 Cal.App.4th 860, 868.) In short, the court substitutes its judgment for the agency's regarding the basic facts of what happened, when and why, and the credibility of witnesses. (Guymon v. Board of Accountancy (1976) 55 Cal.App.3d 1010, 1013-16.)

Even when exercising independent judgment, "a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (Fukuda, *supra*, 20 Cal.4th at 817.) Unless it can be demonstrated by the petitioner that the agency's actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency's discretion or substitute their wisdom for that of the agency. (Bixby, *supra*, 4 Cal.3d at 150-151; Bank of America, *supra*, 42 Cal. App.3d at 208.)

Petitioner has not met this burden.

Nichols explained the series of events as he understood it: While Nichols was booked, an officer took his earring. (AR 141.) On release, Nichols received his property bag, which he took home and emptied to discover the earring was missing. (AR 141-42.)

Petitioner asks the Court to conclude that the Board lacked any reasonable factual or legal basis to treat Nichols's account as an allegation of misconduct. The record does not permit that conclusion. While Petitioner notes that Nichols also stated he was going to ask his daughters about the earring (AR 145-46), that comment does not alter the material facts: Nichols came to the Station and reported that property taken from him during booking was missing from the property bag he received upon release; he accepted Petitioner's offer to file a lost property report; and he independently asked for a review of video footage. (AR 231.) While Nichols also acknowledged alternative possibilities, the evidence clearly supports a finding that Nichols was alleging the officers at least misplaced his earring, which Petitioner does not dispute would have constituted misconduct.[2]

Accordingly, the finding that Petitioner failed to take appropriate action after becoming aware of alleged misconduct is supported by the weight of the evidence.

3.

The Five-Day Suspension Penalty Was Not an Abuse of Discretion

Petitioner argues that, even accepting the Board's findings, the five-day suspension penalty was an abuse of discretion. Petitioner offers two grounds: (1) the Board stated it would not treat Petitioner's three offenses as a pattern of conduct but nevertheless considered penalty recommendations for second or third offenses; and (2) Petitioner was not malicious, has a long, positive record, and is well-regarded by his supervisor.

The propriety of a penalty imposed by an administrative agency is a matter in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion. (*Lake v. Civil Service Commission* (1975) 47

Cal.App.3d 224, 228 ["Lake"].) In determining whether there has been an abuse of discretion, the court must examine the extent of the harm to the public service, the circumstances surrounding the misconduct, and the likelihood that such conduct will recur. (Skelly, supra, 15 Cal.3d at 217-18.) Neither an appellate court nor a trial court is free to substitute its discretion for that of the administrative agency concerning the degree of punishment imposed. (Nightingale v. State Personnel Board (1972) 7 Cal.3d 507, 515.)

Petitioner's first argument is not supported by the record. [3] (AR 57, 63, 363.) The misconduct at issue was a subsequent offense. (AR 57, 63, 363.) For that reason, the Board considered the recommendations applicable to second or third offenses. (Ibid.) The Board then adjusted downward, explaining that traditional progressive discipline was not fully applicable because all relevant misconduct occurred within a short timeframe, during a period when Petitioner faced difficult personal circumstances and the Station was unusually busy. Petitioner therefore had limited opportunity to learn from earlier mistakes. (AR 63-64, 363-64.) The Board also credited Petitioner's strong overall record and reputation, addressing Petitioner's second argument. (AR 63-64, 363-64.) The Board therefore declined to impose the minimum recommended 16-day suspension in favor of a lesser suspension of five days. (Ibid.) A five-day suspension falls within the penalty range recommended for a first offense of this category. (AR 58.) The Board declined to depart further downward in the hopes that "this penalty provides a stark reminder for the sergeant that transparency, following departmental policy and procedure, and integrity are key components to the department's reputation." (AR 64, 364.)

Petitioner has not met his burden under this highly deferential standard. Demonstrating that a lesser penalty might also be reasonable is insufficient; Petitioner must show a manifest abuse of discretion. The Board imposed a penalty within the recommendation for a first offense, emphasizing that progressive discipline did not apply but the offense was nonetheless very serious. Nothing in the record shows the Board acted without a reasonable basis in fact or law.

Accordingly, Petitioner has not shown Respondent abused its discretion in imposing a five-day suspension.

V.

Conclusion

The petition for administrative mandamus is DENIED. Pursuant to Local Rule 3.231(n), respondent City of Los Angeles shall prepare, serve, and ultimately file a proposed judgment.

Date:

September 1, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

The Court does not and need not find Petitioner wrote the Sergeant's Log maliciously. Neither the question of the statute of limitations nor the question of guilt discussed below turn on Petitioner's intent in drafting his Sergeant's Log.

[2]

Petitioner also makes the passing assertion that his directing Aguirre to write the Report, his documentation in his Sergeant's Log, and his providing Nichols with his business card were sufficient action. However, he does not explain or provide evidence showing why these actions were the appropriate response. Nor does he explain what standard would guide evaluation of such response. Finally, he does not address the evidence in the record from which the Board concluded he was required to take a complaint. (See AR 131-40.) Therefore, this argument is not properly raised.

[3]

The record provides that Petitioner "has multiple sustained findings for failing to take complaints or failing to investigate complaints." (AR 57.) The other incidents occurred July 4, 2023 and July 21, 2023 (the same day as the incident at issue). (AR 47.) These incidents include (a) on July 4, 2023, a failure to take a complaint about biased policing allegations (AR 294, 300, 315-16); and (b) on July 21, 2023 (the same day as the incident at issue), a failure to investigate an allegation for missing cash after a suspect was booked (AR 271, 277, 291-92).